

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Order Staying Mandate on Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** June 22, 2026

The panel has granted rehearing and withdrawn the May 29 counterfactual opinion and judgment. Because no operative judgment presently supplies a mandate, the Clerk shall not issue or release mandate while the reheard appeal remains pending. This order makes that status express on the isolated docket.

Federal Rule of Appellate Procedure 41 ties mandate to the Court's judgment and permits the Court to control issuance by order. The ordinary calculation associated with denial of rehearing does not apply in this mutually exclusive grant path. Any later calculation must begin from a new judgment or an express direction entered after rehearing.

The stay preserves appellate jurisdiction while the panel receives focused supplemental briefing. It is not a stay pending certiorari, requires no security, and expresses no view of the eventual merits. No party may treat the withdrawn judgment as effective during this interval.

Access, Service, and Duration

The mandate stay does not alter access to public or controlled branch materials. Public redacted counterparts remain available. A controlled counterpart may be opened only after the disclosure-specific authorization, resolved-closure verification, and revocable session conditions established by the earlier limited-sealing motion and certificate.

Any finite sealing endpoint measured from mandate has not begun because mandate has not issued. The current restrictions continue during rehearing, subject to earlier reconsideration. A later opinion and judgment must state the disposition and allow the Clerk to calculate any new Rule 40 and Rule 41 dates.

Teren Wye shall record the status as mandate stayed on rehearing and serve Tamsin Roe, Leo Marr, and Corin Pell. The docket entry must remain separate from every denial or post-denial issuance path. It creates no event on the actual appeal.

Entered June 22, 2026 at the direction of Judges Vale, Quill, and Reed. This fictional procedural order contains no authentic operational detail and authorizes no conduct outside the exercise.